THIS SUBSCRIPTION AGREEMENT GOVERNS CUSTOMER'S ACQUISITION AND USE OF THE SERVICE. CAPITALIZED TERMS HAVE THE DEFINITIONS SET FORTH HEREIN.

BY ACCEPTING THIS AGREEMENT, BY (A) CLICKING A BOX INDICATING ACCEPTANCE, OR (B) EXECUTING AN ORDER THAT REFERENCES THIS AGREEMENT, CUSTOMER AGREES TO THE TERMS OF THIS AGREEMENT.

If the person accepting this Agreement is doing so on behalf of a company or other legal entity, such person represents that he or she has the authority to bind such entity to the terms of this Agreement, in which case the term "Customer" shall refer to such entity. If the person accepting this Agreement does not have such authority, or does not agree to the terms of this Agreement, such person must not accept this Agreement and may not use the Service.

This Agreement was last updated on December 01, 2024. It is effective between Customer and EBEDIX as of the date Customer accepts this Agreement (the "Effective Date").

1. DEFINITIONS.

"Affiliate" means, with respect to a Party, any entity that currently or in the future controls, is controlled by, or is under common control with such Party for as long as such control exists, where "control" means ownership of more than fifty percent (50%) of the outstanding securities representing the right to vote for the election of directors or other administrative authority of such Party.

"Agreement" means this EBEDIX Solutions Subscription Agreement.

"Applicable Law" means all laws, rules, regulations and other proclamations having the effect of law anywhere in the world that are applicable to any activity undertaken or proposed to be carried out by a Party under this Agreement.

"Authorized User" means any user: (a) whom Customer authorizes to access the Service on its behalf; (b) for whom a subscription to the Service has been purchased pursuant to an Order; and (c) to whom Customer has provided access credentials to the Service (or EBEDIX, at Customer's request).

"Content" means the information, data, text, photographs, software, scripts, graphics, and interactive features generated, provided, or otherwise accessible on or through the Service.

"Customer" means in the case of a person accepting this Agreement on his or her own behalf, such person, or in the case of a person accepting this Agreement on behalf of a company or other legal entity, the company or other legal entity for which such person accepts this Agreement.

"Credentials" means the username and password that accredit a person to access the Service

"Customer Materials" means all documents, files, materials, data, and other information that Customer transmits to the Service through the functionality available in the user interface accessible to the Service's web, but in all cases excluding EBEDIX.

"Documentation" means any documentation that EBEDIX makes available to Customer that describes the features or requirements of the Service.

"Malicious Code" means code, files, scripts, agents, or programs intended to cause harm, including, but not limited to, viruses, worms, time bombs, and Trojan horses.

"EBEDIX" means EBEDIX SAS, EBEDIX LLC, EBEDIX International Group Inc.

"EBEDIX Data" means any: (a) data, information, or other routines generated by or on behalf of EBEDIX through any automated data analysis, processing, or other operations or use of the Service; and (b) aggregated and anonymized data generated or collected by or on behalf of EBEDIX in connection with the Service, including such data based on or derived from the Customer Materials.

"EBEDIX-Developed Intellectual Property" means all technology in any form or medium, including software and other works of authorship, data, databases and data collections, inventions (patentable or not) or discoveries, trade secrets, and confidential information, and any process, know-how, or technique, in each case, that is conceived, developed, or practiced in connection with the Service by or on behalf of EBEDIX. including Content.

"EBEDIX Materials" means the Service, Documentation, Projects, Reality Capture, Methodologies and Intellectual Property Developed by EBEDIX.

"Service" means EBEDIX's software-as-a-service platform(s), whether registered or unregistered, proprietary or not, accessible to Customer and Authorized Users through the subdomain set forth in an Order, and all services, features, tools, applications, and Content available therein.

"Order" means a mutually executed order form that references and incorporates the terms of this Agreement.

"Party" means EBEDIX or the Client individually, and "Parties" means EBEDIX and the Client collectively.

"Subscription Term" means the subscription term for the Service set forth in an Order.

"Visualizations" means the 3D production assets provided by the Service from the Customer Materials.

2. EBEDIX'S RESPONSIBILITIES

2.1. Provision of the service. EBEDIX (a) will make the Service available to Customer in accordance with this Agreement and applicable Orders and Documentation; and (b) use commercially reasonable efforts to make the Service available 24 hours a day, 7 days a week, except: (i) planned downtime (of which EBEDIX will give advance electronic notice) and emergency maintenance, and (ii) any unavailability caused by circumstances beyond EBEDIX's reasonable control, including, for example, a casualty, act of government, flood, fire, earthquake, pandemic, epidemic, civil unrest, act of terrorism, strike or other employment problem (other than one involving EBEDIX employees), Internet service provider failure or delay, third-party application, or denial-of-service attack.

3. USE OF THE SERVICE AND VISUALIZATIONS

3.1. Subscriptions. Access to the Service is purchased as a subscription for the term set forth in the applicable Order for the number of Authorized Users set forth therein (the "User Limit"). Customer agrees that its purchases are not contingent upon the delivery of any future functionality or features, nor are they contingent upon any oral or written public comment made by EBEDIX regarding future functionality or features.

3.2. User limit. Customer acknowledges that excessive usage beyond the User Limit will result in additional fees charged by EBEDIX. Customer and EBEDIX agree to cooperate in good faith to

review Customer's use of the Service, and Customer will promptly pay any additional fees charged in connection with such excessive use. Customer shall promptly notify EBEDIX in the event that Customer experiences changes that may lead to a substantial increase in its use of the Service (including as a result of any merger, acquisition, or similar event affecting Customer).

3.3. Access to the Service. Customer has a non-transferable, non-sublicensable right during the applicable Subscription Term to: (a) access and use the Service; and (b) share links to public portions of the Service on Third-Party Services (as defined in Section 3.8) to allow third parties to view the Views, in each case, subject to the terms of this Agreement and the applicable Order.

3.4. Customer Responsibilities. Customer is solely responsible for: (a) the accuracy, quality, and legality of the Customer Materials, the means by which Customer acquired the Customer Materials, and Customer's use of the Customer Materials with the Service; (b) identify and authenticate all Authorized Users, and approve such Authorized Users' access to, the EBEDIX Materials; (c) protect against unauthorized access to or use of the Service; and (d) all activities that occur under your and your Authorized Users' usernames, passwords, or accounts. EBEDIX is not liable for any damages arising from the acts or omissions of Authorized Users, including persons who were not authorized to access the EBEDIX Materials but were able to access it for any reason. Customer shall notify EBEDIX immediately of any actual or suspected breach of this Agreement by any Authorized User. Any breach of this Agreement by any Authorized User is considered a breach by Customer.

3.5. Subscription Information. EBEDIX offers The Customer access to the use of the Service solely for its internal business purposes. Customer is solely responsible for providing the system requirements necessary to access and use the Service.

3.6. Restrictions on Use. Customer shall not, directly or indirectly, and shall not permit any third party (including any Authorized User): (a) to decompile, disassemble, reverse engineer, or attempt to derive the source code, structure, ideas, algorithms, or associated know-how of the EBEDIX Materials, or to reconstruct, or uncover, any hidden or non-public elements of the EBEDIX Materials (except to the extent expressly permitted by Applicable Law notwithstanding this restriction); (b) translate, adapt or modify the EBEDIX Materials; (c) write or develop any program based on the EBEDIX Materials or, to the extent permitted by Applicable Law, use any part of the EBEDIX Materials in any manner for the purpose of developing, distributing, or making accessible products or services that compete with any portion of the EBEDIX Materials; (d) sell, sublicense, transfer, assign, lease, rent, distribute, or grant a security interest in the EBEDIX Materials; (e) use any portion of the EBEDIX Materials, except as expressly permitted by the terms of this Agreement and the applicable Order; (f) allow any portion of the EBEDIX Materials to be used by anyone other than Authorized Users; (g) alter or remove any trademarks or proprietary notices contained in the EBEDIX Materials; (h) circumvent or otherwise interfere with any authentication or security measures of the Service, or interfere with or disrupt the integrity or performance of the Service; (i) use any portion of the EBEDIX Materials in violation of Applicable Laws; (j) use the Service to store or transmit infringing, defamatory, or otherwise illegal or unlawful material, or to store or transmit material that violates the privacy rights of others; or (k) transmit to the Service any Malicious Code or illegal, infringing, harmful, or other data or code, provided that if Customer knows or suspects that Customer or an Authorized User has transmitted to the Service such data or code or Malicious Code, then Customer will immediately provide EBEDIX with written notice thereof and reasonable assistance to assist in enabling EBEDIX to identify and remove the same from its systems. The Service may not be accessed for the purpose of monitoring its availability, performance, or functionality, or for any other competitive or benchmarking purpose.

3.7. Removal of Client Materials and Content. Subject to the terms of this Agreement, Customer Materials submitted to the Service will remain available to Customer and Authorized Users through the Service for the duration of the applicable Subscription Term, unless removed or deleted by an Authorized User before or in accordance with the terms of this Agreement. If Customer receives notice that Customer Materials must be removed, modified, and/or disabled to avoid violating Applicable Law or the rights of third parties, Customer will do so immediately. If Customer fails to take the actions required in accordance with the foregoing, or if in EBEDIX's judgment a continuing violation is likely to occur again, EBEDIX may disable the applicable Customer Materials and/or Service. Upon EBEDIX's request, Customer will confirm such deletion and discontinuance of use in writing and EBEDIX shall be authorized to provide a copy of such confirmation to any third-party claimant or governmental authority, as applicable. In addition, if a third-party rights holder requires EBEDIX to remove Content, or receives information that the Content may violate Applicable Law or the rights of third parties, EBEDIX may terminate Customer's access to such Content through the Service.

3.8. Monitoring; Suspension. EBEDIX may, but has no obligation to, monitor Customer's use of the Service. EBEDIX may, in its reasonable discretion, suspend access to the Service (including Views) if EBEDIX believes that: (a) the Customer or any Authorized User is in breach of this Agreement; (b) use of the EBEDIX Materials as contemplated by this Agreement poses a security risk; (c) the EBEDIX Materials or Customer's use thereof violates, misappropriates, or infringes the rights of EBEDIX or a third party; (d) there is an error or performance issue with the EBEDIX Materials that adversely affects EBEDIX servers or other systems; (e) Customer's use or sharing of any portion of the Service places unexpected or excessive demands on EBEDIX's servers or other systems; or (f) any Applicable Law prohibits EBEDIX from performing any of its obligations under this Agreement.

3.9. Third-Party Services. The Service may allow Customer to share links to certain public portions of the Service, solely for the purpose of posting Views on other websites, services, or resources on the Internet ("Third-Party Services"). Customer acknowledges and agrees that EBEDIX is not responsible for the content, functions, accuracy, legality, suitability, or any other aspect of the Third-Party Services, and that the inclusion of such functionality does not imply endorsement by EBEDIX or any association between EBEDIX and the operators of the Third-Party Services. Further, Customer acknowledges and agrees that EBEDIX shall not be responsible or liable, directly or indirectly, for any damage or loss caused or alleged to be caused by or in connection with use of or reliance on any such content, features, goods, or services available on or through any Third-Party Services.

3.10 Authorized Use. Customer may permit employees, agents, consultants, contractors, suppliers, and authorized suppliers ("Authorized Users") to access or use the Service solely for their internal business purposes. Customer is responsible for all access to or use of the Service by any Authorized User. The Authorized User must be a natural person.

i. If You are a Licensed Entity, the Software may be used by employees of Your current divisions, subsidiaries or affiliates, domestic or international, who have control or are controlled or are under common control with The Customer.
ii. Use of the Software on a computer(s) owned by a third party that provides IT services to you for this Software is permitted if:
    a. The Client warrants to inform EBEDIX of the identity of the third party, and
    b. Customer is responsible for such third party's performance of this Agreement.
iii. Installation of this Software on a server that allows Customer to access this Software or any of its features over a public network or the Internet without the use of a secure, password-protected portal is prohibited.

3.11 User ID and password protection. Customer shall require each Authorized User to have a unique user ID and login password ("User Credentials"). User Credential information is strictly confidential and should not be shared with any unauthorized person. We will have no liability under this Agreement for actions that may be taken using your User Credentials, including any unauthorized use or access caused by misuse or misappropriation. Customer must take all necessary steps, including sending notice to Customer, to terminate the access of any Authorized User upon termination of the Authorized User's access rights (whether through termination of employment, termination of relationship with Customer, or otherwise), (b) if the security of passwords is compromised, or (c) if there has been or is suspected to have been unauthorized use.

3.12 Service Technical Support. EBEDIX will offer the Customer, at no additional cost, reasonable amounts of technical support in accordance with EBEDIX's support policy and contracted services.

3.13 General Restrictions. Customer shall not, and shall not in any way permit any of its users to: (a) modify, copy, duplicate, create derivative works from, frame, mirror, scrape, sell, rent, lease, loan, license, distribute, offer access to, sublicense, or otherwise make available to a third party the Service or at a service bureau or as part of a subcontracting offer; (b) use the Service to provide, or incorporate any part of the Service into, any service for the benefit of a third party; (c) access all or a portion of the Service to create a product or service that competes with the Service; (d) reverse engineer, decompile, disassemble, or otherwise attempt to obtain the source code or non-public APIs of the Service; (e) remove or obscure any notices or legends that have been placed or embedded by EBEDIX on the Service; or (h) circumvent Authorized User authentication or the security of the Service or any host, network, or account that is related to the Service. Customer will use the Service only for lawful purposes and in accordance with this Agreement.

4. FEES; PAYMENT

4.1. Fees. Customer will pay EBEDIX all fees of the type and in the amounts set forth in the applicable Order ("Fees"). If Customer's actual use of the Service exceeds the User Limit, Customer shall pay for the excessive usage as set forth in Section 3.2. All rates are non-cancellable, non-refundable and non-recoverable.

4.2. Payment Terms. Unless otherwise set forth in the applicable Order, all Fees will be invoiced in advance, and all invoices for the Fees are due and payable in U.S. dollars within 30 days of the invoice date, without deduction or set-off. Interest accrues from the due date to the lesser of 1.5% per month or the highest rate permitted by Applicable Law.

4.3. Taxes. Customer is responsible for all federal, state, local, sales, use, value-added, excise or other taxes, fees or duties arising out of this Agreement or the transactions contemplated by this Agreement (other than taxes based on EBEDIX's net income).

5. PROPRIETARY RIGHTS AND LICENSES

5.1. Ownership. As between the Parties: (a) subject to the limited rights and licenses expressly granted by EBEDIX under this Agreement, EBEDIX owns and retains all right, title, and interest in and to the EBEDIX Materials and EBEDIX Data, including all technology, software, algorithms, user interfaces, trade secrets, techniques, designs, inventions, works of authorship, and other technology in any form on or for the Service (collectively, "EBEDIX Intellectual Property"), and

EBEDIX has the right to use and exploit all EBEDIX Intellectual Property without restriction; (b) subject to the limited rights and licenses expressly granted by Customer under this Agreement, Customer is the sole owner and retains all right, title, and interest in and to Customer Materials and any Views made on Customer Materials; and (c) Unless expressly formally notified by the Client, EBEDIX requests and the Client agrees to authorize the use of its Materials and photographic images for public and promotional purposes according to the terms and conditions set forth in this Agreement in the following media: EBEDIX website, brochures and printed and digital materials, promotional and advertising material, social media and online platforms. EBEDIX may make reasonable edits to the photographs to meet design and marketing requirements. The Client grants EBEDIX the non-exclusive right and authorization to use its Materials and photographic images, for the purposes of promotion, research, publication, studies and marketing of EBEDIX, without this authorization allowing the Client to receive financial compensation for the authorization of the use of its Materials and photographic images.

5.2. Reservation of Rights. All rights not expressly granted to the other by one Party in this Agreement are hereby reserved and neither Party grants the other any implied rights or licenses under any theory.

5.3. License to Content. EBEDIX hereby grants to Customer during the applicable Subscription Term a non-exclusive, non-transferable, non-sublicensable license to allow its Authorized Users to access and use the Content solely for the purpose of using the Service in accordance with the terms of this Agreement and the applicable Order.

5.4. License to Customer Materials. By submitting Customer Materials to the Service, Customer grants EBEDIX a worldwide, non-exclusive, royalty-free, fully-paid, license to access, use, adapt, convert, transcode, reproduce, distribute, display, perform, transmit, store, and disclose Customer Materials, solely to produce Visualizations and as necessary to provide the Service or Customer-generated links. Customer represents that it has obtained all necessary rights, permissions, and approvals to grant such license without infringing or violating the rights of any third party, including privacy rights, publicity rights, copyrights, trademarks, contract rights, or any other intellectual property or proprietary rights, and that it will comply with all applicable Applicable Laws in connection with this Agreement. including the exercise of your rights hereunder.

5.5. Comments. Customer may choose to provide EBEDIX with ideas, suggestions, or feedback relating to any aspect of the EBEDIX Materials ("Feedback"). Such Feedback will be non-confidential, and Customer grants EBEDIX a non-exclusive, perpetual, irrevocable, transferable, sublicensable (through multiple tiers), royalty-free, worldwide license to implement, use, modify, or exploit, in any manner without restriction, the Feedback, without any fees, attribution, or other obligations to Customer.

5.6. Third-Party Content. As part of the Services, EBEDIX may provide Customer with access to text, files, images, graphics, illustrations, information, data, audio, video, photographs, and other content and materials that are obtained from or derived from third-party sources (collectively, "Third-Party Content"). The third-party owner, author, or provider of such Third-Party Content retains all intellectual property rights therein and thereto, and Customer's rights to use such Third-Party Content are subject to and governed by the terms applicable to such content as specified by such owner, author, or third-party provider. All Third-Party Content is provided on an "as is" and "as available" basis without any warranty of any kind. The Company is not responsible for and has no obligation to control, monitor, or correct Third-Party Content, and may remove any Third-Party Content at its discretion.

6. DATA PROCESSING

6.1 Processing Your Content. Customer hereby grants EBEDIX and its subcontractors a royalty-free, irrevocable, and non-exclusive worldwide right to store, transmit, reproduce, distribute, display, and make available its Content in whole or in part solely to the extent necessary to provide the Service to Customer, or as required by law. EBEDIX will not use your Content in any other manner, except as expressly described in this Agreement.

6.2 Control of Your Content. Customer is the controller of its Content, including any personally identifiable information contained therein, and EBEDIX is the processor of its Content. In addition, Customer is solely responsible for compliance with all applicable laws, including, without limitation, all export, import, and data protection laws and regulations that apply to Customer and its Content.

6.3 Location of Data Processing. Your Content may be transferred to, and processed in, the United States or any other country where EBEDIX or Our affiliates or subcontractors maintain facilities. Customer designates EBEDIX to make such transfer of its Content to such countries and to process its Content for the purpose of providing the Services in accordance with the terms and conditions of this Agreement.

6.4 Processing of personal data contained in Your content. Our Data Processing Agreement ("DPA" for non-GDPR personal information) applies to, and governs, all activities relating to the processing of personal data (as defined in the DPA) included in your Content. By accepting this Agreement, each party is deemed to have signed the DPA as a "Controller" in the case of Customer and as a "Processor" in the case of EBEDIX.

7. TERM AND TERMINATION

7.1 Duration of the contract. This Agreement shall commence on the date Customer first accepts it and shall continue until all subscriptions hereunder have expired or terminated.

7.2 Term of Subscriptions. The term of each subscription will be as specified in the applicable Order. Except as otherwise specified in an Order, subscriptions will automatically renew for successive one-year periods, unless either party provides notice of non-renewal at least 30 days prior to the expiration of the then-current Subscription Term.

7.3 Termination. Either Party may terminate this Agreement or any Order by written notice if the other Party materially breaches this Agreement or such Order, where such material breach is not cured within 30 days of written notice of such breach by the non-breaching Party. For the avoidance of doubt: (a) by way of example only, a breach of Section 3.5 or 5.4 by Customer or an Authorized User is considered a material breach of this Agreement; (b) the expiration or termination of an Order shall not affect the term of any other Order then in effect; and (c) any termination of this Agreement will automatically terminate all Orders then in effect.

6.4. Effect of Termination. As of the effective date of the expiration or termination date of an Order for any reason: (a) Customer's and all Authorized Users' access to the subdomain set forth in such Order and all applicable EBEDIX Materials (including access to Customer Materials on the Service) will automatically terminate; and (b) all outstanding payment obligations of Customer under such

Order shall be due and payable immediately. For the avoidance of doubt, if Customer fails to remove or delete Customer Materials prior to such effective date of expiration or termination, as of such date EBEDIX shall have no further obligation to store or permit retrieval of such Customer Materials and may remove and/or delete such Customer Materials at its discretion. (c) Customer shall not be entitled to a prorated refund of any portion of the subscription fee already paid, unless EBEDIX is the defaulting party;

6.5 Termination for convenience. Customer may terminate the Service for convenience at any time upon written notice to EBEDIX. If you decide to terminate your use of the Service for convenience, (a) you will not be entitled to a refund of any portion of the subscription fee you have already paid, and (b) you will remain responsible for making any remaining payments due to us with respect to a Subscription longer than one year.

6.6 Validity. The following Sections, and the defined terms and provisions necessary to interpret or enforce those Sections (but only to the extent required for such interpretation or application), shall survive the termination or expiration of this Agreement: 3.5, 4, 5, 6.4, 6.5, 7, 9, 10, and 12.

7. CONFIDENTIALITY

7.1. Definition of Confidential Information. "Confidential Information" means any information disclosed, directly or indirectly, by or on behalf of a Party ("Discloser") to the other Party ("Recipient") pursuant to this Agreement that: (a) is designated as "confidential" or otherwise to indicate its confidential nature; or (b) otherwise, it should reasonably be expected to be treated confidentially based on the circumstances of its disclosure and the nature of the information itself. However, Confidential Information does not include any data made available by or on behalf of Customer in connection with the use of the Service or any information that: (i) is or becomes generally known and available to the public without any act or omission of the Recipient; (ii) was already in the possession of the Recipient without a duty of confidentiality due to the Discloser at the time of the Discloser's disclosure, as evidenced by the Recipient's contemporaneous records; (iii) is lawfully obtained by the Recipient from a third party who has the right to make such disclosure; or (iv) is independently developed by the Recipient without breach of an obligation owed to the Discloser and without any use or reference to the Discloser's Confidential Information.

7.2. Obligations. The Recipient shall make the same efforts to protect the Discloser's Confidential Information from loss or alteration, and unauthorized access, use, or disclosure, as it does to protect its own confidential information of similar sensitivity, but in no event shall such efforts be less than reasonable efforts. The Recipient may only use the Discloser's Confidential Information to perform its obligations and exercise its rights under this Agreement. The Recipient shall not disclose or provide access to the Discloser's Confidential Information to any third party, except: (a) for disclosures to: (i) the Recipient's employees who need to know such information in order to perform their obligations under the Agreement and to subcontractors permitted under Section 12.4; or (ii) professional advisors or prospective investors or acquirers (each in (i) and (ii), a "Permitted Recipient"); and (b) the Recipient may disclose the Discloser's Confidential Information if required to do so by Applicable Law; provided that the Recipient shall give prior written notice to the Discloser of such mandatory disclosure (to the extent permitted by law) and reasonable assistance, at the Discloser's expense, if the Discloser wishes to contest the disclosure. The Recipient shall promptly inform the Discloser in writing of any actual or suspected loss or alteration, or unauthorized access, use or disclosure of Confidential Information. The Recipient shall be liable for any breach of this Agreement by its Authorized Recipients.

8. REPRESENTATIONS AND WARRANTIES

8.1. Mutual insurance company. Each Party represents and warrants to the other Party: (a) that it is properly organized, validly exists, and is in good standing under the laws of the jurisdiction of its constitution or other organization; (b) you have the full corporate right, power, and authority to enter into and perform your obligations and grant the licenses you grant or are required to grant under this Agreement; (c) the execution of an Order by its representative whose signature appears on the Order has been duly authorized by all necessary corporate or organizational actions of such Party; and (d) where an Order has been executed by both Parties, this Agreement and such Order shall constitute the legal, valid, and binding obligation of such Party, enforceable against such Party in accordance with its terms.

8.2. By the Client. In addition, Customer represents, warrants, and covenants with EBEDIX that Customer owns or has and will continue to have necessary rights in connection with Customer Materials so that, as received and used pursuant to this Agreement, it does not and will not infringe, misappropriate, or violate any rights of any third party or violate any Applicable Law.

9. INDEMNIFICATION

9.1. By EBEDIX. EBEDIX: (a) defend, or, at its option, settle, any claim brought against Customer by a third party alleging that Customer's use of the Service for which there is an active Subscription Term at the time of the claim constitutes a direct infringement of any intellectual property rights of any third party (each, a "Claim"); and (b) pay damages awarded in a final judgment (or amounts agreed in a monetary settlement) in any Claim defended by EBEDIX; provided that the Client provides EBEDIX: (i) immediate written notice of; (ii) exclusive control over the defense and settlement of; and (iii) all information and assistance reasonably requested by EBEDIX in connection with the defense or settlement of any Claim. In the event that such a Claim is made or threatened to be filed, EBEDIX may, in its sole discretion and at its expense: (1) procure for Customer the right to continue using the infringing items; (2) modify the infringing items so that they do not infringe; (3) replace the infringing items with non-infringing technology that has substantially similar capabilities; or (4) if none of the foregoing is commercially viable, terminate all Orders or this Agreement. Notwithstanding the foregoing in this Section 9.1, EBEDIX shall have no obligation hereunder (x) for any use of the EBEDIX Materials in combination with software, products, services, or technologies not provided by EBEDIX, to the extent that the Service would not be infringing were it not for such combination; (y) arising out of or in connection with Customer's failure to use the EBEDIX Materials in accordance with this Agreement; or (z) for any claim that falls within the scope of Section 9.3.

9.2. Disclaimer. SECTION 9.1 SETS FORTH EBEDIX'S ENTIRE LIABILITY, AND CUSTOMER'S EXCLUSIVE REMEDY, WITH RESPECT TO ANY CLAIM THAT FALLS WITHIN THE SCOPE OF SECTION 9.1.

9.3. By the Client. Customer will defend, or, at its option, settle, any claim brought against EBEDIX by a third party arising out of or in connection with any Customer Material or alleging that any Customer Material and/or any use thereof pursuant to this Agreement infringes or misappropriates the rights of any third party or violates Applicable Laws; provided that EBEDIX provides the Client: (a) immediate written notice of; (b) exclusive control over the defense and resolution of; and (c) all information and assistance reasonably requested by Customer in connection with the defense or settlement of such claim. Customer will pay all damages finally awarded against EBEDIX (or the amount of any settlement Customer enters into) with respect to any claim defended by Customer.

EBEDIX may appear in connection with such claims, at Customer's expense, through counsel reasonably acceptable to Customer.

10. DISCLAIMERS; LIMITATION OF LIABILITY

10.1. Disclaimers. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, EBEDIX DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING ANY AND ALL WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, LOSS OF DATA, ACCURACY OF RESULTS, OR ARISING FROM A COURSE OF DEALING OR RELIANCE. WITHOUT LIMITING THE FOREGOING, EBEDIX DOES NOT REPRESENT OR WARRANT THAT: (a) THE EBEDIX MATERIALS WILL BE ERROR-FREE OR UNINTERRUPTED; (b) THE EBEDIX MATERIALS WILL BE COMPATIBLE WITH ANY PARTICULAR DEVICE OR WEB BROWSER; (c) ANY DATA PROVIDED BY OR THROUGH THE EBEDIX MATERIALS (INCLUDING ANY THIRD-PARTY CONTENT) WILL BE ACCURATE OR COMPLETE; OR (d) THE SECURITY MEASURES WILL BE SUFFICIENT TO PREVENT THIRD PARTY ACCESS TO THE CUSTOMER MATERIALS OR CUSTOMER DEVICES OR ANY THIRD-PARTY TECHNOLOGY USED IN CONNECTION WITH THE EBEDIX MATERIALS.

10.2. Limitation of Liability. IN NO EVENT SHALL EBEDIX BE LIABLE FOR ANY INDIRECT, SPECIAL, INCIDENTAL, EXEMPLARY, PUNITIVE, TRIPLE, OR CONSEQUENTIAL DAMAGES (INCLUDING, BUT NOT LIMITED TO, LOSS OF BUSINESS, REVENUE, PROFITS, GOODWILL, DATA OR ECONOMIC ADVANTAGE, AND THE COSTS OF SUBSTITUTE GOODS OR SERVICES) ARISING OUT OF OR RELATED TO THIS AGREEMENT OR ITS TERMINATION, REGARDLESS OF CAUSE, AND BASED ON ANY THEORY OF LIABILITY, WHETHER FOR BREACH OF CONTRACT, BREACH OF WARRANTY, TORT (INCLUDING NEGLIGENCE), PRODUCT LIABILITY, OR OTHERWISE, EVEN IF EBEDIX HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. EBEDIX'S TOTAL LIABILITY (INCLUDING ATTORNEYS' FEES) ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED THE AMOUNT PAID BY CUSTOMER UNDER THE ORDERS GIVING RISE TO THE CLAIM DURING THE 12-MONTH PERIOD PRIOR TO THE DATE THE CLAIM AROSE. THESE LIMITATIONS SHALL APPLY NOTWITHSTANDING ANY FAILURE OF ESSENTIAL PURPOSE OF ANY LIMITED OR EXCLUSIVE REMEDY. THE FOREGOING SHALL APPLY TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW.

11. TOOLS; ANALYSIS

11.1. EBEDIX may use tools, scripts, software, and utilities ("Tools") to monitor and administer the Service and help resolve any service requests. The information collected by the Tools may also be used to help manage and improve EBEDIX's portfolio of products and services, to help EBEDIX address deficiencies in its product and service offerings, and for the administration of licenses and services.

11.2. EBEDIX may audit the Customer's use of the Service to assess whether the Customer's use of the Service is in accordance with an Order and this Agreement. The client agrees to cooperate fully with the audit of Nura and to provide reasonable assistance and access to information. Any such audit will not unreasonably interfere with the Client's normal business operations. Customer shall pay within 30 days of written notice of any fees applicable to Customer's use of the Service in excess of its rights. If Customer fails to pay, EBEDIX may terminate the Service and/or this

Agreement. EBEDIX shall have no liability for any costs incurred by the Client in cooperating with the audit.

12. GENERAL PROVISIONS

12.1. Interpretation. Unless there is a clear intention to the contrary: (a) any term defined in the singular includes the plural where required by the applicable context; (b) the headings of this Agreement are for convenience of reference only, shall not be deemed to be part of this Agreement, and shall not be referred to in connection with the interpretation of this Agreement; and (c) uses of "including" mean "including, without limitation." Any ambiguity in this Agreement shall be construed regardless of which Party drafted this Agreement or any part thereof.

12.2. Non-solicitation. During the Subscription Term and for one (1) year thereafter, Customer shall not, and shall not assist any other Party in, recruit or solicit, directly or indirectly, except for general advertising not specifically directed to any person or company, for employment or hiring as an independent contractor to any person employed or contracted by EBEDIX at that time or within the preceding six (6) months. In the event of a violation of this Section 12.2, EBEDIX shall be entitled to damages equal to the compensation paid by EBEDIX to the applicable employee or contractor during the preceding twelve (12) months.

12.3. Changes. EBEDIX may make changes or updates to the EBEDIX Materials during the Subscription Term, including to reflect changes in technology, industry practices, and system usage patterns; however, such changes will not result in a material reduction in the level of performance or availability of the Service during the Subscription Term.

12.4. Assignment; Subcontractors. Neither Party may assign this Agreement or any of its rights under this Agreement without the prior written consent of the other Party, except that EBEDIX may assign this Agreement without Customer's consent as part of a corporate reorganization, to any EBEDIX Affiliate, or upon a change of control, consolidation, merger, sale of all or substantially all of its businesses or assets related to this Agreement. or a similar transaction or series of transactions. Subject to the foregoing, this Agreement shall be binding upon and inure to the benefit of the Parties and their respective successors and permitted assigns. EBEDIX, in its sole discretion, may, from time to time, engage third parties to perform any of its obligations under this Agreement, including accommodation or other services. EBEDIX shall be responsible for compliance by all parties with the applicable terms of this Agreement.

12.5. Applicable Law. If there is any dispute between the Parties arising out of this Agreement (each, a "Dispute"), each Party's authorized representatives will negotiate in good faith to resolve the Dispute. If such representatives are unable to resolve the Dispute after no less than 30 days of good faith negotiations, then either Party may seek all remedies available exclusively in the courts of competent jurisdiction in Miami, Florida, and each Party waives all rights to contest such venue on any theory. This Agreement shall be governed by the laws of the State of Florida, excluding its principles of conflicts of law.

12.6. Advertising. EBEDIX may use Customer's name as a reference for marketing or promotional purposes on EBEDIX's website and in other communications with EBEDIX's existing or potential customers, investors, or acquirers, subject to written trademark policies that Customer may provide to EBEDIX in writing, with reasonable anticipation. Neither Party shall issue any press release or publish any publicly available statement or documentation describing the activities being carried out under this Agreement without the prior written consent of the other Party, which shall not be unreasonably withheld.

12.7. Entire Agreement; Order of precedence. All Orders are incorporated by reference into this Agreement. In the event of a conflict between the terms of this Agreement and any Order, the terms of this Agreement shall prevail unless the Order expressly states otherwise. This Agreement, including all Orders, is the sole agreement of the Parties with respect to the subject matter hereof, and supersedes all prior or contemporaneous agreements and understandings with respect to such subject matter. Nothing in any purchase order, acknowledgment, or other form provided by Customer shall modify this Agreement, regardless of whether EBEDIX does not object to such terms.

12.8. Third-party beneficiaries. This Agreement is for the exclusive benefit of the Parties and their respective successors and permitted assigns and nothing contained herein, express or implied, is intended to confer or will confer upon any other party any legal or equitable rights, benefits, or remedies of any nature under or by reason of this Agreement.

12.9. Exemptions. All waivers of rights arising under this Agreement must be made in writing by the Party waiving the rights.

12.10. Notifications. Any notice required or permitted under this Agreement shall be effective if: (a) it is in writing and sent by registered or registered mail, or by secured courier, return receipt requested, to the Party corresponding to the address indicated in the Order, in the case of the Customer, or as set forth below, in the case of EBEDIX, and with the corresponding postage; or (b) sent by email to the email address indicated in the Order, in the case of the Customer, or as set forth below, in the case of EBEDIX. Either Party may change its address of receipt of notices by notifying the other Party in accordance with this Section. Notices are deemed to have been given two (2) business days after the date of mailing, one (1) business day after delivery to a courier, and/or on the same day an email is sent to the recipient. Notwithstanding the foregoing in this Section 12.10, any notice threatening litigation or alleging breach of this Agreement must be sent in accordance with method (a) of this Section.

12.11. List of the parties. The relationship between the Parties is that of independent contractors. Nothing contained in this Agreement shall be construed as creating an agency, partnership, joint venture, or other form of joint venture, employment, or fiduciary relationship between the Parties, and neither Party shall have authority to contract with or bind the other Party in any way.

12.12. Severability. If any provision of this Agreement is found by a court of competent jurisdiction to be unenforceable, then: (a) it will be severed from this Agreement; (b) the court of competent jurisdiction shall replace the severing provision with another provision that most closely reflects the original intent of the Parties to the fullest extent permitted by Applicable Law; and (c) this Agreement shall remain in full force and effect.

EBEDIX Contact Information:
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